

Suresh Kumari vs Romesh Kumar on 12 December, 2019

Author: Sindhu Sharma

Bench: Sindhu Sharma

HIGH COURT OF JAMMU AND KASHMIR
AT JAMMU

CTA No. 36/2013
IA No. 34/2013

Suresh Kumari

....Petitioner(s)

Through:- Present in person.

V/s

Romesh Kumar

.....Respondent(s)

Through:- Present in person.

CORAM : HON'BLE MRS. JUSTICE SINDHU SHARMA, JUDGE

ORDER

1. Petitioner seeks transfer of petition of divorce under Section 13 of the Hindu Marriage Act filed by respondent pending in the Court of learned Additional District Judge, Kathua to the Court of learned District Judge, Samba.
2. It is submitted that the marriage between the parties was solemnized on 01.05.2005 and out of the wedlock, a daughter was born. Since difference arose between the parties, respondent has filed a petition of divorce under Section 13 of the Hindu Marriage Act. It is submitted that their daughter is suffering from an under-developed hip joint by birth and is residing with the petitioner.
3. Petitioner is presently residing in her parental village Karandi, Tehsil and District, Samba. She has a minor child to support, as such, it is extremely difficult for her to attend proceedings under Section 13 of the Hindu Marriage Act before the learned Additional District Judge, Kathua. As her child requires special care. Therefore, she seeks transfer of the case from the court of learned Additional District Judge, Kathua to the court of learned District Judge, Samba to enable her to pursue the petition without any difficulty.

4. Respondent, who is present in person, submits that he has no objection in case the proceedings in File No. 06/HM Act pending in the court of learned Additional District Judge, Kathua are transferred to the court of learned District Judge, Samba.

5. The law in transfer of matrimonial cases is well settled, it is the convenience of the wife which is to be seen. The Hon ble Apex Court in Anupama Patil v. Nataraj Veerangaounda Patil, 2018 (5) SCC 354, has held as under:

"As is evident from the cases referred to above, the principle of law with regard to transfer of cases especially regarding matrimonial disputes is quite settled, where consistent opinion is that it is always the convenience of wife which has to be given due weightage for ordering the transfer of proceedings at or near the place where the wife is residing."

6. In view of the above and the fact the respondent has no objection to the transfer of the case, prayer of the petitioner is accepted and the application is allowed. Divorce petition under Section 13 of the Hindu Marriage Act, titled, „Romesh Kumar v. Suresh Kumari in File No. 06/HM Act pending in the court of learned Additional District Judge, Kathua is ordered to be transferred to the court of learned District Judge, Samba. Trial court is directed to transmit the record of the aforesaid file to the transferee court.

7. The parties to the litigation shall appear before the court of learned District Judge, Samba on 07.02.2020.

8. Copy of the order be sent to both the courts.

9. Disposed of along with connected IA.

(Sindhu Sharma) Judge JAMMU 12 .12.2019 Pawan Chopra Whether the order is speaking : Yes/No
Whether the order is reportable : Yes/No